PLJ 2014 Lahore 1057 (DB)

Present: Muhammad Khalid Mehmood Khan and Abid Aziz Sheikh, JJ.

DISTRICT COLLECTOR LAHORE, etc.--Appellants

versus

Mian ABDUL HAKEEM and others--Respondents

R.F.A. No. 450 of 2008, decided on 12.5.2014.

Land Acquisition Act, 1894 (I of 1894)--

----Ss. 4 & 14--Limitation Act, (IX of 1908), S. 5--Stamp Act, 1899, S. 27-A--Notification for acquisition of land--Award was challenged--Rate of compensation award was inadequate--Condonation of delay--Office objection was removed--Question of rate of compensation awarded--Validity--Notification under Section 27-A of Stamp Act, by District Collector, was not applicable to agricultural land but it is only related to residential plot, therefore, was not relevant to assess market value of land hence, impugned judgment is not sustainable--If land was more than 10 marlas then as per notification rate was Rs.6.000/- per marla front and Rs.4,000/- per marla off front--Notification was also presented to Collector at lime of passing of award--It is settled law that land is not to be evaluated merely by reference to use at time when it was evaluated but also by reference to use to which it is reasonably capable to put to in future--To determine compensation of acquired land, beside sale price of adjoining land, location, potentiality, future prospective and likelihood of development and improvement of acquired land has to be considered by authorities at time of compensation. [Pp. 1065, 1066 & 1067] E, F, G & H

Stamp Act, 1899 (II of 1899)--

----S. 27-A--Rate of compensation--Documentary and oral evidence--Notification issued by Distt. Collector--Validity--Rate of compensation determination of Rs.5,000/- per marla for land in depression and Rs.6,000/- for land in level was neither arbitrary nor perverse rather same was well reasoned in accordance with record available and did not suffer from any legal infirmity. [P. 1068] I

Rules and Orders of Lahore High Court (Revised Edition, 2005)--

----Rr. 9 & 9-A--Chapter-I-Part-A--Constitution of Pakistan, 1973--Art. 202--Re-filing of appeals--Application for reconstruction of R.F.A. along with Court fees--Once appeal was originally filed within time, cannot be dismissed on ground of objection was not removed within time--Validity--Deputy Registrar Judicial of High Court--Authorized to return appeal for making up deficiency or filing requisite document--If within time provided such petition is not refiled/returned a notice shall be affixed upon Notice Board meant for purpose specified and it within seven days deficiency is still not made good, matter shall be placed before High Court for an order on a date to be notified by fixing such a petition in motion cause list--Once office objection was not removed, office was required under Rule 9-A to fix matter before Court in motion cause list for its decision--Admittedly case was not fixed before Court when fire incident took place in Civil Branch and office presumed that file of instant case was burnt along with many other files--Once appeal was originally filed within time but was returned due to office objection, which objection was not timely removed, however, case was never placed by office before Court under Rule 9-A Revised Edition 2005 and finally after recovery of appeal file from burnt record, it was numbered in 2008 and placed before Bench after removing of objection, whether instant appeal will become time barred--Petitioner rather availed more than one chance to remove objections and finally when objections were removed, 154 days were already elapsed from date of decision of impugned order--On date when objection was removed, petition became time barred, therefore, office required petitioner to file an application for condonation of delay under Section 5 of Limitation Act, which when came up before High Court, same was dismissed being not maintainable and civil revision met same fate. [Pp. 1062 & 1063] A, B, C & D

Civil Procedure Code, 1908 (V of 1908)--

----O. XLI, R. 33--Stamp Act, (II of 1899), Ss. 27(2) & 28--Discretionary power for grant of relief--Delay payment of compensation--No appeal or cross objection was filed against judgment whereby costs and interest was specifically denied and dispute regarding vires of acquisition proceedings were challenged by land owners themselves in various petitions, which remained pending before different Courts--Not fit a case for exercising of our discretionary power for grant of relief claimed in favour of respondents under Order 41 Rule 33, CPC. [P. 1068] J & K

Mr. Iftikhar Ahmad Mian, Advocate for Appellants.

Mr. Fakhar-uz-Zaman Akhtar Tarrar, Advocate for Respondents.

Date of hearing: 8.4.2014.

JUDGMENT

ABID AZIZ SHEIKH, J.--Through this appeal the appellants have assailed the judgment and decree dated 11.04.2001, passed by the learned Senior Civil Judge Lahore, whereby the learned Judge allowed the reference under Section 18 of the Land Acquisition Act, 1894, made by the Land Acquisition Collector, Lahore, vide No. L.A.C./140-94/12448 dated 30.08.1997 on the application of Mian Abdul Hakeem and 52 others, interested in the acquired land, measuring 638 kanals and 11 marlas comprising Khasra Nos. 770 to 779 etc. situated in Village Mehmood Booti, Tehsil Lahore Cantt, District Lahore.

2. Brief facts are that at the instance of the Administrator, Metropolitan Corporation, Lahore, vide memo. dated 04.12.1994, the District Collector, Lahore, issued a notification under Section 4 of the Land Acquisition Act, 1894 (Act) on 15.12.1994 for acquisition of land measuring 638 kanals and 11 marlas, situated in revenue estate of Village Mehmood Booti, Tehsil Lahore Cantt. District Lahore, for construction of land Fill Site (Waste to Energy Project) financed by the World Bank. The said notification was followed by declaration under Sections 6 and 17 of the Act. The award was announced by the Assistant Commissioner (Headquarter)/Land Acquisition

Collector, Lahore (Collector) on 22.07.1997, whereby the compensation of the land in question was awarded by classifying the land into two separate categories. Rs.1200/- per marla was awarded against the level land whereas Rs.900/- per marlas was awarded against the land in deep depression along with 15% compulsory acquisition charges totaling an amount of Rs.152,96,610/-. The costs of trees, orchard, tube well and superstructure was in addition to the aforesaid amount. The award was challenged by the respondents inter-alia on the ground that the rate of compensation awarded is inadequate, which may be enhanced to Rs.20,000/- per marla. The reference was admitted by the learned Senior Civil Judge Lahore and after filing of written statement, framing of issues and recording of evidence of the parties, through impugned judgment dated 11.04.2001, the award dated 22.07.1997 was set-aside and the respondents were awarded compensation against their acquired land at the rate of Rs.5,000/- per marla for the land lying in low depression and at the rate of Rs.6,000/- per marla for the level land. 15% compulsory acquisition charges under Section 23(2) of the Act was also awarded, however, the learned Court declined costs and interest in terms of Section 27(2) and 28 of the Act. The appellant being aggrieved filed this instant appeal.

3. At the very outset the learned counsel for the respondents raised preliminary objection that the appeal is barred by time. Before proceeding on merits we would like to dilate upon the question of limitation involved in this appeal. The learned counsel for the respondents argued that the impugned judgment was passed on 11.04.2001, against which the appeal was initially filed on 15.06.2001. The office raised certain objections on which the learned counsel for the appellants received back the case file and refilled the same vide Diary No. 2037 after 4 months and 10 days on 25.10.201 I, without removing the main objection of Court Fee. Thereafter none approached the office to remove the said main objection till 10.01.2002 when fire incident took place in Civil Branch and file was reportedly burnt. Finally, the Court Fee was purchased on 03.03.2005 and was filed with an application for condonation of delay in year 2008. Contends that aforesaid fact shows that till 2005 no Court fees was annexed with the appeal, and therefore, the appeal is grossly barred by time.

4. Conversely, the learned counsel for the appellants submits that the appeal is not barred by time, as already explained in his application (CM. No. 2 of 2008) for condonation of delay under Section 5 of the Limitation Act. Submits that the impugned judgment and decree was passed on 11.04.2001 against which the appeal was filed within time on 15.06.2001. The said appeal was returned to the counsel with the objection to deposit the printing charges. Accordingly, the printing charges were deposited on 24.10.2001 and the office objection was removed. However, on the death of Mr. Fiaz Ahmad Bhatti, Advocate, when the appeal file from Advocate Office was taken back by the appellants, it transpired that the instant RFA has already been burnt in a fire erupted in the Civil Branch in 2002. The appellants approached the office and was informed that appellants will be issued a notice for reconstruction of R.F.A but no notice was received thereafter. Submits that in I.C.A No. 798 of 2002 where acquisition of land by the appellants was under challenged, the Division Bench of this Court vide order dated 13.01.2005 observed that as the record of this R.F.A has been damaged, therefore, the appellants can have the record of this

R.F.A reconstructed. Accordingly, the appellants filed an application for reconstruction of R.F.A along with the Court fees. Submits that as per office report dated 18.11.2008 after hectic efforts the original file of the appeal was traced out and there was no need to reconstruct the file, which was accordingly placed before this Court for hearing alter numbering in year 2008. Contends that once the appeal was originally filed within time, the same cannot be dismissed on the ground that the office objection was not removed within time. Reliance is placed on the case reported as Farman Ali versus Muhammad Ishaq and others (PLD 2013 Supreme Court 392).

5. We have heard the learned counsel for the parties and perused the record on the question of limitation.

6. The relevant Rules and orders of the Lahore High Court, Lahore made under Article 202 of the Constitution of Islamic Republic of Pakistan, 1973, relating to office objection(s) and refilling/filing of appeals are Rules 9 and 9-A, Part-A of Chapter-1 of the Rules and Orders of the Lahore High Court, (Revised Edition, 2005). For ready reference the said Rules states as under;

"9-(i). The Deputy Registrar (Judicial) is authorized to return memorandum of any suit, appeal or petition or application etc,

(a) if it is not maintainable under any law or

(b) if it is not properly constituted: or

(c) if it contains scandalous or objectionable language or material: or

(d) if it is not drawn up in conformity with the foregoing directions: or

(e) for amendment making up of the deficiency or for filing requisite documents within the time to be specified in the Objection Memorandum Appendix 1 (a), 1(b) & 1(c)

(ii) The order of the Deputy Registrar (Judicial) returning the memorandum of any suit appeal petition or application may be challenged before the Chief Justice or Judge nominated by the Chief Justice on administrative side whose decision shall be final and shall not be assailed in any other proceeding before the High Court.

"9-A. A List of petitions, appeals etc. ordered to be returned shall be notified on the Notice Board and petitions, appeals, etc. not received back within seven days of the publication of the list shall be placed before a Judge of the High Court for order on a date to be notified by including such petition in a motion cause list. It is made clear that any delay in placing such petition before the Court or issuing the list shall not furnish any justification for non receipt of the returned petition in time and non compliance of the objection taken within time specified by Deputy Registrar (Judicial)".

8(sic). According to Rule 9, Deputy Registrar (Judicial) can raise objections mentioned herein, Once the objections are raised the appeals, etc. are returned for making up the deficiency within the time to be specified.

The relevant part of objection Sheet states:--

"Returned with the objections at No. ____ above to be resubmitted after the removal of these objections within ______ days " (emphasis supplied).

7. From Rule 9 ibid it is clear that the Deputy Registrar (Judicial) of this Court, is only authorized to return the appeal for making up any deficiency or filing requisite document within time to be specified in the objection memorandum, however, the rule does not empower the Deputy Registrar (Judicial) of this Court, to entertain the petition or in other words to dismiss the petition having not been validly instituted. In case the deficiency is not corrected by the appellant within time given by the Deputy Registrar (Judicial) of this Court, the situation is fully covered by rule 9-A (supra) which postulates that if within time provided such petition is not refilled/returned a notice shall be affixed upon the Notice Board meant for the purpose specified and it within seven days the deficiency is still not made good, the matter shall be placed before a Judge of this Court for an order on a date to be notified by fixing such a petition in the motion cause list. It is thus clear that as per rules it is for the Court to decide as to what should be done with such matter(s).

8. In the above context, it is an admitted position that the impugned judgment was passed on 11.04.2001 against which the appeal was filed on 15.6.2001 vide Diary No. 1225. It is neither anybody's case nor it is shown from the record by the respondents that initial filing of appeal on 15.06.2001 was beyond prescribed period of limitation. The office raised objection which was removed and the case was refilled on 25.10.2001 vide Diary No. 2037, however, since the main objection regarding Court Fees was not removed, the office repeated its objection but the same was not removed within time given by the office. Once the office objection was not removed, the office was required under Rule 9-A ibid to fix the matter before the Court in motion cause list for its decision. Admittedly the case was not fixed before she Court till 10.1.2002, when fire incident took place in Civil Branch and office presumed that the file of instant case was burnt along with many other files. The appellants alter the order by the Division Bench of this Court on 13.01.2005 in I.C.A No. 798 of 2002, filed an application for reconstruction of file along with the Court Fees, however, the said file was traced out by the office from the heaps of burnt cases and was finally numbered in 2008 after removal of deficiency of Court Fee and placed before this Bench. The legal question involved herein is that once the appeal was originally filed within time but was returned due to office objection, which objection was not timely removed, however, the case was never placed by the office before the Court under Rule 9-A ibid and finally after recovery of appeal file from burnt record, it was numbered in 2008 and placed before the Bench after removing of objection, whether the instant appeal will become time barred.

9. The similar legal question involved in this appeal, came up before the august Supreme Court of Pakistan in case reported as Farman Ali v. Muhammad Ishaq and others (PLD 2013 SC 392). In the said case the civil revision was filed before this Court on 18-4-1994 which was filed within time, however, the D.R.R. (Civil) returned the civil revision after raising objections at Serial Nos. 3, 5, 6, 15, 16, 21 and 23 and petitioner was required to remove the objections within

limitation provided for civil revision. The petitioner could not remove the said office objections within time provided. The petitioner rather availed more than one chance to remove the objections and finally when the objections were removed, 154 days were already elapsed from the date of the decision of the impugned order. On the date when objection was removed, the petition became time barred, therefore, the office required the petitioner to file an application for condonation of delay under Section 5 of the Limitation Act, which when came up before this Court, the same was dismissed being not maintainable and the civil revision met the same fate. The honourable Supreme Court while interpreting the Rules 9 and 9-A of the High Court Rules and Orders ibid, held that a revision petition which was originally filed within time prescribed by law but was deficient in some respect, and such deficiencies were not supplied and made up in the given time, cannot be termed to be barred by time. In this behalf the relevant extracts of the aforesaid judgment is reproduced as under:--

"It may be emphatically held that such a revision petition, which was filed within time prescribed by law, but was deficient in some respect, and such deficiencies were not supplied and made up in the given time, cannot be termed to be barred by time. It may be pertinent to mention here that where the revision petition is beyond limitation, the DR can point out to the petitioner this aspect and caution him, but has to fix the matter before the Court for its decision on the question of limitation leaving if for the petitioner to seek the indulgence of the Court on the question of limitation or otherwise. Be that as it may, we may like to refer here a verdict of this Court which has nexus to the matter i.e. Mst. Sabiran Bibi v. Ahmad Khan and another (2000 SCMR 847) holding that:--

"Thus, in view of above discussion we are inclined to hold that once a suit, appeal or revision has been presented before the authorized officer of the Court within the prescribed period of limitation, it cannot be treated barred by time for the reason that the office has noted defects in the proceedings which have not been removed by the concerned party or his Advocate, and in such like situation the Presiding Officer of the Court at the best can consider the maintainability of proceedings in view of the provisions of Order VII, Rule 11 or identical provisions available in the Code of Civil Procedure or the law under which the proceedings were instituted. It is also important to note that parties/Advocates are also not absolved from their duty to remove the office objections within the stipulated period prescribed by the concerned authorized officer subject to the condition that specific notice has been served upon the party or Advocate to do the needful. Even if after notice the defect is not removed the case shall be listed for non prosecution before the Presiding Officer who may in his discretion allow time to comply with objections of office."

The upshot of the above discussion is that where a revision petition has been filed within time, but the office objection(s) points out certain deficiencies in respect of the institution, for all intents and purposes, it shall be deemed to have been instituted within the period of limitation and where the petitioner does not remove the office objections and make up the deficiencies in the time provided by the office, the matter shall be placed before the Court on the judicial side and the Court shall decide about the fate of the petition in accordance with law, and as per some of the guidelines provided in the preceding part of this judgment. In the instant case, an error-has been committed at both the levels, i.e. the office, where an impression was caused that the revision petition of the appellant is rendered time barred on account of the lapse of the period due to the failure on part of the appellant to make up the deficiencies in the time specified by the office and requiring the petitioner to file the application for the condonation of delay, and also at the stage of hearing when the learned High Court has not adverted to the fact of the case, the relevant law, quoted above, but has simply dismissed the petition as being time barred due to the non application of Section 5 of the Limitation Act, 1908 to the revision petitions. Therefore, the impugned judgment cannot sustain which is hereby set aside and the matter is remanded to the learned High Court for the decision afresh on merits.

10. In view of the law laid down by the august Supreme Court of Pakistan in case of Farman Ali (Supra), which was also followed by Division Bench of this Court in Muhammad Boota versus Basharat Ali (PLD 2014 Lahore 1) and in view of the peculiar facts and circumstances of this appeal, the same cannot be treated as barred by time. Accordingly the preliminary objection raised by the respondents has no substance and the same is over ruled.

On Merits.

11. The learned counsel for the appellants argued that she learned trial Court has given no reason to differ with the findings of the Land Acquisition Collector on the question of rate of compensation awarded to the respondents. Submits that no evidence was produced by the respondents to prove that the rate of land purchased in bulk was Rs.5,000/- and Rs.6,000/- for land in depression and level land respectively, and not Rs. 900/- and Rs. 1200/-, as assessed by the Land Acquisition Collector. Further contends that the notification under Section 27-A of the Stamp Act by the District Collector, Lahore was not applicable to agricultural land but it is only related to the residential plot, therefore, was not relevant to assess the market value of the land in dispute, hence, the impugned judgment is not sustainable. Learned counsel further opposed C.M. No. 1 of 2012 filed by the respondents for additional compensation and interest.

12. Conversely, the learned counsel for respondents argued that the respondents produced voluminous, documentary and verbal evidence to prove that the land acquired was a valuable land and its market value was much more than assessed by the Collector, hence, the impugned judgment is legal and well reasoned. He further submits that the respondents are also seeking costs, additional compensation and interest on the excess compensation through an application i.e CM. No. 1 of 2012. Reliance is placed on the case reported as Province of Punjab through Collector, Rajanpur District and 2 others versus Muhammad Akram and others (1998 SCMR 2306), Juma Sher versus Sabz Ali (1997 SCMR 407), Province of Punjab through Collector, Sialkot and others versus Haji Muhammad Siddique and 10 others (PLJ 2002 Lahore 524), and Niaz Muhammad and others versus Assistant Commissioner/Collector, Quetta and others (2005 SCMR 394), Amir Khan Afridi and 6 others versus Government of Pakistan through Collector

Land Acquisition and 4 others (2009 MLD 860), Haji Muhammad Yaqoob and another versus Collector, Land Acquisition Additional Deputy Commissioner, Peshawar (1997 SCMR 1670), Government of Sindh and 2 others versus Syed Shakir Ali Jafri and 6 others (1996 SCMR 1361), Punjab Province through Secretary to Government of the Punjab, Housing and Physical Planning Department and 4 others versus Muhammad Ishaque (2005 YLR 148).

13. We have given our anxious consideration to the arguments of the learned counsel for the parties and have gone through the record, appended herewith.

14. The arguments of both the learned counsel for the parties center around Issues No. 1, 2 and 3 relating to the quantum and assessment of compensation for the land acquired. Before the trial Court, the respondent/plaintiff produced Muhammad Abbas (AW.1), Muhammad Adrees (A.W.2), Meraj Din (AW.3) and documentary evidence Ex.A/1 to Ex.A/8. On the other hand the appellant/defendant produced Muhammad Ashiq Bhatti (R.W.1) and documentary evidence (Ex.R.1 to Ex.R.3). The close scrutiny of documentary and oral evidence shows that as per notification issued under Section 27-A of the Stamp Act 1899 (Stamp Act) by the Collector/Deputy Commissioner Lahore for year 1994-95 (Ex. A/4), the rate of land per marla for locality of Mehmood Booti was Rs.8,000/- per marla front and Rs.6,000/- per marla off front, however, if the land is more than 10 marlas then as per said notification rate was Rs.6.000/- per marla front and Rs.4,000/- per marla off front. The said notification was also presented to the Collector at the time of passing of award. However, the perusal of the award dated 22.07.1997 shows that the Land Acquisition Collector Lahore (Collector) simply agreed with the recommendation of the District Collector, Lahore, for awarding the rate of compensation of Rs. 1200/- per marla for level land and Rs.900A per marla for land in depression by ignoring the aforesaid notification issued by the District Collector, Lahore on the ground that the land in question being purchased in bulk and of the agricultural nature, the valuation table issued by the District Collector, Lahore was not applicable. This reasoning in the award was contrary to the evidence on record. As per statement of the appellants' own sole witness namely Muhammad Ashiq Bhatti, who appeared as R.W.1, the land in question was to be used for plant of fertilizer, he further stated that the land is within the boundaries of corporation and there is population in front of the land in question. He also stated that he was not aware if award was based on some average sale price. From the respondents side, for the relevant period, a copy of registered sale deed was produced as Exh.A.5 whereby the land measuring 5 marks was sold for Rs.40,000/-. Similarly, Exh.A.6, was the sale deed relating to 10 marla's plot which was sold for Rs.60,000/--, Exh.A.7 related to sale of 4 marla's plot for Rs.24,000/- and Ex.A.8 was sale deed of 5 marlas plot sold for Rs.30,000/-. No document has been produced from the appellants' side to rebut these documents or to show that the value of the land was Rs.900/- and Rs.1200/- per marla as assessed by the Collector, From the respondents side Muhammad Abbas appeared as AW.1, who in cross-examination stated that land is in committee boundaries, whereas Muhammad Idrees appeared as AW.2 and Meraj Din appeared as AW.3, who also supported the aforesaid stance of the respondents and produced documentary evidence to that effect. It is settled law that the land is not to be evaluated merely by reference to the use at the time when it was evaluated but also

by reference to the use to which it is reasonably capable to put to in future. To determine compensation of acquired land, beside sale price of adjoining land, the location, the potentiality, future prospective and likelihood of development and improvement of the acquired land has to be considered by the authorities at the time of compensation. In this regard reliance is placed on the cases reported as Peer Muhammad Saeed and others versus Collector, Land Acquisition and others (2002 SCMR 407), Land Acquisition Collector/Deputy Commissioner, Abbottabad and others versus Sardar Muhammad Safdar Khan and others (1998 SCMR 2142), Collector, Land Acquisition, Mardan and others versus Nawabzada M. Ayub Khan and others (2000 SCMR 1322), Sardar Abdur Ranf Khan and others versus The Land Acquisition Collector/Deputy Commissioner, Abbottabad and others (1991 SCMR 2164), Deputy Commissioner/Land Acquisition Collector and others versus Sardar Muhammad Shafaat and others (PLD 2001 Supreme Court 405), Land Acquisition Collection, Rawalpindi and others versus Dina and others (1999 SCMR 1615) and Murad Khan through his widow and 13 others versus Land Acquisition Collector, Peshawar and another (1999 SCMR 1647). In the above context the sole witness of the appellants R.W.1 himself admitted that not only the land in question is within limits of Municipal Corporation but it is also in front of populated residential area. R.W.1 also stated that the land in question is to be used for installation of industry. In such circumstances it cannot be said that land acquired is not valuable, rather the land is potential with future prospects, therefore, it was unreasonable on part of the Collector, to assess the land at the meager rate of Rs.900/- and 1200/- per marla instead of market rate prevailing at the relevant time.

15. In view of the documentary and oral evidence produced by the parties and the notification issued by the District Collector, Lahore, under Section 27-A of the Stamp Act, the rate of compensation determined by the learned Senior Civil Judge of Rs.5,000/- per marla for the land in depression and Rs.6,000/- for the land in level is neither arbitrary nor perverse rather the same is well reasoned in accordance with the record available and does not suffer from any legal infirmity.

16. As far as application of the respondents for grant of costs, additional compensation and interest on excess compensation is concerned, the learned Senior Civil Judge in the impugned judgment specifically denied costs and interest to the respondents under Section 27(2) and Section 28 of the Act, on the ground that purpose of acquisition was purely public and further both the parties failed to prove their respective claims. The learned Court also not allowed the interest under Section 34 of the Act. The aforesaid part of the judgment was neither challenged in appeal nor any cross objection has been filed by the respondents against the aforesaid finding, therefore, to that extent the judgment has attained finality against the respondents. It is also not denied by the respondents that some of the land owners themselves challenged the vires of the acquisition by the appellants in various writ petitions and matter remained pending, before different Courts including the August Supreme Court of Pakistan, where Review Petition C.R No, 107 of 2005 was finally decided on 02.03.2011, which has delayed the payment of compensation. In view of the fact that no appeal or cross objection was filed by the respondents against the judgment dated 11.4.2001, whereby the costs and interest was specifically denied to

the respondents and the dispute regarding the vires of acquisition proceedings were challenged by the land owners themselves in various petitions, which remained pending before different Courts. We do not find it a fit case for exercising of our discretionary power for grant of relief claimed in favour of the respondents under Order 41 Rule 33, CPC. The precedents relied upon by the respondents are not applicable to the facts and circumstances of this case. Accordingly, the application i.e. CM. No. 1 of 2012 is without substance and same is dismissed.

17. In view of the above discussion, the instant appeal has no merits and the same is dismissed with no order as to costs. Consequently, all the pending C.Ms are also disposed of in terms of this judgment.

(R.A.) Appeal dismissed